

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Company, Ltd., Samsung SDS Global SCL Asia Pacific PTE LTD,
and Samsung Electronics Logitech Company, Limited**

**PROOF OF SERVICE ON THIRD-PARTY
RESPONDENT SAMSUNG SDS ASIA PACIFIC PTE LTD**

Third-Party Complainant COSCO Shipping Lines Co. Ltd. (“COSCO”), by and through undersigned counsel and pursuant to Federal Maritime Commission’s Rules of Practice and Procedure 46 C.F.R. § 502.113(c), hereby submits proof of service of the Third-Party Complaint and Notice of Filing of same on Third-Party Respondent Samsung SDS Asia Pacific Pte Ltd. (“SDS”). On July 8, 2025, pursuant to the attached Affidavit of Service, SDS was served in accordance with the Hague Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters of November 15, 1965 at 11:30 am by process server. *See Exhibit A attached hereto.*¹

¹ Although 46 C.F.R. § 502.113(c) provides that the affidavit of service “be filed with the Secretary within five days following service,” undersigned counsel for COSCO submits that there is good cause for the late filing because it did not receive the notice and affidavit of service on SDS from the Central Authority of Singapore until July 14, 2025. *See Exhibit B attached hereto.*

Dated: July 15, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

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***Attorneys for Third-Party Complainant,
COSCO Shipping Lines Co., Ltd.***

CERTIFICATE OF SERVICE

I certify that on the 15th day of July, 2025, a true and correct copy of the foregoing document, **Proof of Service on Third-Party Respondent Samsung SDS Asia Pacific Pte. Ltd.**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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/s/ Martha Medina
Martha Medina

EXHIBIT A

CENTRAL AUTHORITY OF USA

FEDERAL MARITIME COMMISSION
DOCKET NO. 24-16

REQUEST FOR SERVICE OF DOCUMENTS ON
SAMSUNG SDS ASIA PACIFIC PTE LTD

AFFIDAVIT OF SERVICE

I, Mohamad Hisham Bin Samsudin, Process Server of the Supreme Court of Singapore, do solemnly and sincerely affirm and say as follows:

1. Having been directed to effect service of the documents listed in the Request for Service Abroad of Judicial or Extrajudicial Documents dated 20 June 2025 ("Request"), which is set out in Part 1 of the Model Form annexed to the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters done at The Hague on 15 November 1965, (collectively, the "**Documents**") on SAMSUNG SDS ASIA PACIFIC PTE LTD.
 - (i) On Tuesday, 8 July 2025 at 11:30 AM, I served the Documents on SAMSUNG SDS ASIA PACIFIC PTE LTD by leaving a copy of the said Documents at its registered office located at 30 Pasir Panjang Road, #16-31, Mapletree Business City, Singapore 117440.

A copy of the Request with a record of my service attempt of the Documents is annexed hereto and marked as exhibit "**MH-1**".

Affirmed at Singapore by the abovenamed)

Mohamad Hisham Bin Samsudin)

Hisham

On the *10th* of July 2025)

Before me

Rageswari

COMMISSIONER FOR OATH



THIS IS THE EXHIBIT MARKED “MH-1”
REFERRED TO IN
THE AFFIDAVIT
OF **MOHAMAD HISHAM BIN SAMSUDIN**
AFFIRMED ON
THIS 10th DAY OF JULY 2025
IN SINGAPORE

BEFORE ME

Rageswari

A COMMISSIONER FOR OATHS



**REQUEST
FOR SERVICE ABROAD OF JUDICIAL OR
EXTRAJUDICIAL DOCUMENTS**
DEMANDE AUX FINS DE SIGNIFICATION OU DE NOTIFICATION À L'ÉTRANGER
D'UN ACTE JUDICIAIRE OU EXTRAJUDICIAIRE

Convention on the Service Abroad of Judicial and Extrajudicial Documents in
Civil or Commercial Matters, signed at The Hague, the 15th of November 1965.
Convention relative à la signification et à la notification à l'étranger des actes judiciaires ou extrajudiciaires en
matière civile ou commerciale, signée à La Haye le 15 novembre 1965.

Identity and address of the applicant
Identité et adresse du requérant

Nixon Peabody LLP
799 Ninth Street NW, Suite 500
Washington, DC 20001
United States of America
mmedina@nixonpeabody.com

Address of receiving authority
Adresse de l'autorité destinataire

Ministry of Law
100 High Street
#08-02
The Treasury
Singapore 179434
Republic of Singapore
MLAW_Inf_Legal@mlaw.gov.sg

The undersigned applicant has the honour to transmit – in duplicate – the documents listed below and, in conformity with Article 5 of the above-mentioned Convention, requests prompt service of one copy thereof on the addressee, i.e.:

Le requérant soussigné a l'honneur de faire parvenir – en double exemplaire – à l'autorité destinataire les documents ci-dessous énumérés, en la priant, conformément à l'article 5 de la Convention précitée, d'en faire remettre sans retard un exemplaire au destinataire, à savoir :

(identity and address)
(identité et adresse)

Samsung SDS Asia Pacific Pte. Ltd.
30 Pesir Panjang Road #07-32
Mapletree Business City 117440
Singapore 117440
Republic of Singapore

- | | |
|-------------------------------------|--|
| ☒ | a) in accordance with the provisions of sub-paragraph a) of the first paragraph of Article 5 of the Convention*
selon les formes légales (article 5, alinéa premier, lettre a))* |
| ☐ | b) in accordance with the following particular method (sub-paragraph b) of the first paragraph of Article 5)*:
selon la forme particulière suivante (article 5, alinéa premier, lettre b))* : |
| ☐ | c) by delivery to the addressee, if he accepts it voluntarily (second paragraph of Article 5)*
le cas échéant, par remise simple (article 5, alinéa 2))* |

The authority is requested to return or to have returned to the applicant a copy of the documents - and of the annexes* - with the attached certificate.
Cette autorité est priée de renvoyer ou de faire renvoyer au requérant un exemplaire de l'acte - et de ses annexes* - avec l'attestation ci-jointe.

List of documents / Énumération des pièces

1. Verified Third Party Complaint of COSCO Shipping Lines Co. Ltd.
2. Federal Maritime Commission Notice of Filing of Third Party Complaint

* if appropriate / s'il y a lieu

Done at / Fait à

Miami, FL, U.S.A.

The / le

20 June 2025

Signature and/or stamp
Signature et / ou cachet

M. Medina

SID5141/2025/MN

This Request of Service of documents were served by me, Mohamad Hisham Bin Samsudin on SAMSUNG SDS ASIA PACIFIC PTE LTD at 30 Pasir Panjang Road, #16-31 Mapletree Business City, Singapore 117440. On Tuesday, 8 July 2025 at 11:30 AM, I served the documents on SAMSUNG SDS ASIA PACIFIC PTE LTD by leaving a copy of the said documents at its registered office located at 30 Pasir Panjang Road, #16-31 Mapletree Business City, Singapore 117440.



Mohamad Hisham Bin Samsudin

Process Server

Supreme Court Singapore

EXHIBIT B



**SUPREME COURT OF SINGAPORE
LEGAL REGISTRY**

Your Ref : LAW 62/004 2025-SOFD-343
Our Ref : SID5141/2025/MN

14 July 2025

PS (MinLaw)
Attn: Mr Luqman Hakim Abdullah

Dear Sir,

**REQUEST FOR SERVICE OF DOCUMENTS FROM USA ON SAMSUNG SDS ASIA
PACIFIC PTE. LTD.**

We refer to your request for service of documents in respect of the above.

2 We are pleased to inform you that the attempt made by our Process Server at serving the relevant documents on **SAMSUNG SDS ASIA PACIFIC PTE. LTD.** was **successful**.

3 We return all the documents that you have forwarded for service, together with the Affidavit of Service and the Certificate of Service, as required by Order 64, Rule 4A of the Rules of Court 2021.

4 We also acknowledge payment of SGD \$100.00 in connection with your letter of request for service of documents. We enclose a receipt, for your retention.

5 Thank you.

Yours faithfully

TAN YU QING
ASSISTANT REGISTRAR
SUPREME COURT, SINGAPORE

CERTIFICATE ATTESTATION

The undersigned authority has the honour to certify, in conformity with Article 6 of the Convention,
L'autorité soussignée a l'honneur d'attester conformément à l'article 6 de ladite Convention,

☒ **1. that the document has been served***
que la demande a été exécutée*

– the (date) / le (date):	8 July 2025
– at (place, street, number): à (localité, rue, numéro) :	30 Pasir Panjang Road, #16-31, Mapletree Business City, Singapore 117440

– in one of the following methods authorised by Article 5: dans une des formes suivantes prévues à l'article 5 :	
☒	a) in accordance with the provisions of sub-paragraph a) of the first paragraph of Article 5 of the Convention* selon les formes légales (article 5, alinéa premier, lettre a))*
☐	b) in accordance with the following particular method*: selon la forme particulière suivante* :
☐	c) by delivery to the addressee, if he accepts it voluntarily* par remise simple*

The documents referred to in the request have been delivered to:

Les documents mentionnés dans la demande ont été remis à :

Identity and description of person: Identité et qualité de la personne :	SAMSUNG SDS ASIA PACIFIC PTE. LTD.
Relationship to the addressee (family, business or other): Liens de parenté, de subordination ou autres, avec le destinataire de l'acte :	The company itself

☐ **2. that the document has not been served, by reason of the following facts*:**
que la demande n'a pas été exécutée, en raison des faits suivants*:

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☐ **In conformity with the second paragraph of Article 12 of the Convention, the applicant is requested to pay or reimburse the expenses detailed in the attached statement*.**
Conformément à l'article 12, alinéa 2, de ladite Convention, le requérant est prié de payer ou de rembourser les frais dont le détail figure au mémoire ci-joint*.

Annexes / Annexes

Documents returned: Pièces renvoyées :	Not applicable
In appropriate cases, documents establishing the service: Le cas échéant, les documents justificatifs de l'exécution :	Please see the attached Affidavit of Service.

* If appropriate / s'il y a lieu

Done at / Fait à Supreme Court of Singapore The / le 14 July 2025	Signature and/or stamp Signature et / ou cachet  Assistant Registrar TAN YU QING Supreme Court of Singapore
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